

PRE-SOLICITATION NON-COMPETITIVE –

Notice of Intent to Sole Source

1. **SOLICITATION NUMBER:** PCA-NHLBI-01458
2. **TITLE:** Fortessa Flow Cytometer service contract
3. **RESPONSE DATE:** March 27, 2026, at 4:00 pm EST.
4. **PRIMARY POINT OF CONTACT:**

Jaddua Johnston

Jaddua.Johnston@nih.gov

Phone: 240-569-0006

I. INTRODUCTION:

THIS IS A PRE-SOLICITATION NON-COMPETITIVE (NOTICE OF INTENT) SYNOPSIS TO AWARD A CONTRACT WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME).

The NHLBI Pulmonary Critical Care Medicine Branch (PCCMB) requests a service contract for a Fortessa flow cytometer. This machine has been a component of normal workflow for the last six years. It was relocated to NHLBI in association with the establishment of the PCCMB and to support ongoing experimental analyses of multiple projects associated with immune system analyses within the Lab of Basic and Translational Immunology. The cytometer supports NHLBI PCCMB and Clinical Center Critical Care Medicine Department staff and their collaborators. A service contract is essential to maintenance and machine performance.

II. NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE and SET ASIDE STATUS

NAICS code 334516- Analytical Laboratory Instrument Manufacturing with a business size standard classification of 1250 employees. This acquisition is NOT set aside for small businesses.

III. REGULATORY AUTHORITY

The resultant contract will include all applicable provisions and clauses in effect through the Federal Acquisition Circular (FAC) 2024-07 dated 08-29-2024.

This acquisition is conducted under the procedures as prescribed in FAR subpart 13.5—Simplified Procedures for Certain Commercial Items and FAR subpart 12—Acquisition of Commercial Items at an amount exceeding the SAT, and not exceeding \$7 million.

IV. STATUTORY AUTHORITY

This acquisition is for a commercial item or service and is conducted under the

authority of the FAR Subpart 13.5—Simplified Procedures for Certain Commercial Items and the statutory authority of [specify the applicable authority: (1) FAR 6.302-1—Only one responsible source and no other supplies or services will satisfy agency requirements 41 U.S.C. 3304 (a)(1).

V. DESCRIPTION OF REQUIREMENT:

A. PURPOSE AND OBJECTIVES:

Ongoing experiments include the assessment of immune and parenchymal cells of blood and tissue origin. These experiments require the use of the same cytometer to compare and contrast outcomes. This is due to fluorescence that can differ between cytometers as variation exists in their optical components like laser wavelengths, filter settings, detector sensitivity, and alignment. This can lead to different levels of excitation and detection of fluorescent signals from labeled cells, ultimately resulting in discrepancies in measured fluorescence intensity between instruments even when analyzing the same sample. This also highlights the need for preventive maintenance and a service contract.

A cytometer service contract provides unlimited on call technical support, unlimited service visits that may involve free part replacement, a user preventative maintenance kit, and preventive maintenance. These services can only be provided by the vendor. Cytometers require preventive maintenance to ensure optimal performance, minimize unexpected downtime, maintain data accuracy, and extend the lifespan of the instrument. The cytometer service contract proactively addresses potential issues like worn parts, misalignments, and fluidic system contamination, which can significantly impact the quality of experimental results if left unaddressed. The cytometer service contract prevents costly repairs and keeps the cytometer operating at peak efficiency.

B. PERIOD OF PERFORMANCE:

NHLBI anticipates a firm fixed price purchase order. This requirement shall consist of a 12-month base period and (2) 12-month option periods plus additional option quantities. The estimated period of performance shall be as follows:

Base Period: April 16, 2026 – April 15, 2027
Option Period 1: April 16, 2027 – April 15, 2028
Option Period 2: April 16, 2027 – April 15, 2029

C. PROJECT REQUIREMENTS:

The Contractor shall be responsible for preventative maintenance and on-demand repair services for the Fortessa Flow Cytometer (Serial Number H647794L5026).

A cytometer service contractor provides unlimited on call technical support and unlimited service visits and repair parts. The contract services provide software revisions released during the agreement term and two preventative maintenance inspections to be performed during a twelve-month period. Every reasonable effort will be made to respond to a request for emergency on-site service (Monday through Friday, excluding holidays) within 48 hours.

Independently and not as an agent of the Government, the Contractor shall furnish all the necessary services, qualified personnel, material, equipment, and facilities, not otherwise provided by the Government as needed to perform the Statement of Work below:

The Contractor shall provide:

Contractor shall be required to provide written documentation in achieving this statement of work during the period of performance. The original documentation shall be provided by the vendor to show they completed service.

Service shall include labor and parts coverage, extended coverage hours, on-site labor response, technical telephone response (call-back to schedule), and planned maintenance, diagnostics software license and service documentation, and preferred labor rate.

VI. CONTRACTING WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME) DETERMINATION

The determination by the Government to award a contract without providing for full and open competition is based upon the market research conducted. Specifically, Becton, Dickinson and Company is the only vendor in the marketplace that can provide the services required by NHLBI. The equipment is proprietary to its manufacturer, Becton, Dickinson and Company, and this company is the sole provider of maintenance for this equipment.

In accordance with FAR part 10, extensive market research was conducted to reach this determination. Additionally, contacts with knowledgeable individuals both in industry and Government, as well as reviews of available product literature, revealed no other sources. Finally, a review of the GSA Advantage, Dynamic Small Business Search, and previous government acquisitions returned no results that meet all of the requirements. Therefore, only Becton, Dickinson and Company is capable of meeting the needs of this requirement.

The intended source is:

BECTON, DICKINSON AND COMPANY
2350 Qume DR
San Jose, California
95131-1812, United States

VII. CLOSING STATEMENT

THIS SYNOPSIS IS NOT A REQUEST FOR COMPETITIVE PROPOSALS. However, interested parties may identify their interest and capability to respond to this notice.

A determination by the Government not to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. All responsible sources may submit a capability statement, proposal, or quotation which shall be considered by the agency. The information received will normally be considered solely for the purposes of determining whether to proceed on a non-competitive basis or to conduct a competitive procurement. This notice does not obligate the Government to award a contract or otherwise pay for the information provided in response.

Responses to this notice shall contain sufficient information to establish the interested parties' bona-fide capabilities for fulfilling the requirement and include: unit price, list price, shipping and handling costs, the delivery period after contract award, the prompt payment discount terms, the F.O.B. Point (Destination or Origin), the Dun & Bradstreet Number (DUNS), the Taxpayer Identification Number (TIN), and the certification of business size. All offerors must have an active registration in the System for Award Management (SAM) www.sam.gov.

All responses must be received by the closing date and time of this announcement and must reference the solicitation number, **PCA-NHLBI-01458**. Responses must be due March 27, 2026, at 4:00 pm EST. Responses must be submitted electronically to Jaddua Johnston, Contract Specialist at Jaddua.Johnston@nih.gov.